



Changes to rental laws

 nsw.gov.au/departments-and-agencies/fair-trading/changes-to-rental-laws

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Key information

- The NSW Parliament passed changes to rental laws on 24 October 2024.
- Some changes started on 31 October 2024. Most changes started on 19 May 2025.
- You can stay up to date with rental laws by signing up for the [NSW Fair Trading Property Matters newsletter](#).

What is changing?

On 24 October 2024 the NSW Parliament passed the [Residential Tenancies Amendment Bill 2024](#). The legislation is now the [Residential Tenancies Amendment Act 2024](#) (the Act). Changes to end no grounds terminations and making it easier to keep pets are part of the [Residential Tenancies Amendment Regulation 2025](#).

The Act delivers on the NSW Government's commitment to improve rental laws to support tenants, landlords and the community. It sets up better renting rules that will help give more stability for tenants and certainty for landlords.

These changes:

- require landlords to provide a reason to end a lease - ending 'no grounds' terminations for tenants

- make it easier to keep a pet in a rental home
- limit rent increases to once per year for all lease types
- prevent extra fees at the start of a tenancy, including fees for background checks and for preparing a tenancy agreement
- ensure tenants can pay rent by bank transfer.

From 20 June 2025, [the supporting documents a landlord must give to a tenant](#) where they are ending the tenancy due to significant renovations or repairs to the property changed. Information on the supporting documents that are now required is available on the [Landlords ending a tenancy](#) page.

Why are rental laws changing?

The changes to rental laws progress the NSW Government's election commitments to make renting in NSW fairer and improve protections for tenants.

These reforms follow extensive public consultation through the NSW Government's [Have Your Say platform](#) in 2023 and targeted consultation with tenants, landlords, tenant advocates, real estate and industry stakeholders.

When will the changes start?

Two important changes started on **31 October 2024**. These changes:

- clarify extra fees are prohibited at the start of a tenancy for prospective tenants. This includes fees for background checks and preparing a tenancy agreement
- limit rent increases to once per year for all leases.

Other changes started on **19 May 2025**. These changes:

- require a reason to end a lease (ending no grounds terminations)
- make it easier for tenants to keep pets
- ensure tenants can pay rent by bank transfer.

Changes to the supporting documents landlords must give the tenant where they are ending the tenancy due to significant renovations or repairs to the property started on **20 June 2025**.

From **1 July 2025**, NSW Fair Trading will collect information about reasons a tenancy has ended through Rental Bonds Online.

How will the changes be implemented and enforced?

NSW Fair Trading will enforce the changes. A new Rental Taskforce has been created within Fair Trading with dedicated inspectors and compliance officers who will focus on preventing and responding to breaches of rental laws.

Summary of the changes

Fees at the start of a tenancy (including background checks)

Changes that started on 31 October 2024 make it clear that a tenant or prospective tenant cannot be charged for extra costs while searching, applying for, or starting a tenancy. This includes fees for background checks and fees for preparing a tenancy agreement.

More information is available on the [Costs at the start of a residential tenancy](#) page.

Rent increases

Rent increases can only be made once per year for all leases from 31 October 2024.

Previously, only periodic leases and fixed-term leases of two years or more had this rule. It now applies to all leases.

This change also applies to leases that were in place before the changes started. However, different rules apply for some fixed-term leases of 2 years or less that were entered into before 13 December 2024.

Rent can be increased under a social housing tenancy agreement more than once in 12 months if the increases are only due to a tenant's rent rebate.

More information is available on the [Tenants and rent increases](#) page.

Ending a tenancy

Changes to ending a tenancy started on 19 May 2025. These changes also apply to leases that were in place before the changes started.

Reasons to end a tenancy

Landlords need a reason to end a tenancy for both periodic leases and leases at the end of the fixed term.

Reasons to end a tenancy include:

- where the tenant is at fault, because of a breach of lease, damage to the property, or non-payment of rent
- the property is being sold or offered for sale with vacant possession
- the property needs to be empty for significant repairs or renovations, or the property will be demolished
- the property will no longer be used as a rental home – for example, it will instead be used for a business
- the landlord or their family intend to move into the property
- the tenant lives in the property as part of their employment and their employment has ended
- the tenant is no longer eligible for an affordable or transitional housing program, or the property is purpose-built student accommodation, and the tenant is no longer a student
- the property is part of a key worker housing program and needs to be used by a key worker, like a teacher, health worker or police.

Landlords who want to end a lease need to give tenants a termination notice with an information statement explaining the landlord's responsibilities and the tenant's rights when ending a lease. An [information statement](#) is available for landlords and agents to use.

Landlords must provide supporting documents where they are ending the tenancy because the property:

- is sold or offered for sale
- will have significant renovations or repairs
- will be demolished
- will no longer be used as a rental home, or
- will be occupied by the landlord or their family member.

Heavy penalties apply to landlords or agents who provide a termination notice on a non-genuine ground or give supporting documentation that is false or misleading.

A termination notice that was given before 19 May 2025 is still valid.

More information is available on the [Landlord ending a tenancy](#) page.

From 1 July 2025, NSW Fair Trading will collect information about reasons a tenancy has ended. A landlord or agent will need to provide this reason when releasing a bond or claiming a bond refund through Rental Bonds Online.

Re-letting restriction

Where a landlord or agent ends a lease for certain reasons, there is a period where a new tenancy agreement cannot start. This is known as a re-letting restriction. The reason for ending the tenancy determines the length of the re-letting restriction. Refer to the table below for more information.

Reason for the tenancy ending	Re-letting restriction
Premises no longer to be used as a rented residential premises for 12 months	12 months
Proposed sale of premises	6 months
Landlord or family member to reside at the premises	6 months
Demolition of premises	6 months
Significant renovations or repairs	4 weeks
Reason for the tenancy ending	
Premises no longer to be used as a rented residential premises for 12 months	
Re-letting restriction	12 months
Reason for the tenancy ending	
Proposed sale of premises	
Re-letting restriction	6 months
Reason for the tenancy ending	
Landlord or family member to reside at the premises	
Re-letting restriction	6 months
Reason for the tenancy ending	
Demolition of premises	
Re-letting restriction	6 months
Reason for the tenancy ending	
Significant renovations or repairs	
Re-letting restriction	4 weeks

Penalties may apply to a landlord or agent who enters a new lease within the re-letting restriction period without approval from NSW Fair Trading.

More information is available on the [landlord ending a tenancy](#) page.

Notice periods for ending a lease

Tenants must be given enough notice before the termination date to leave the property. The amount of notice a tenant must be given before their lease ends will increase for tenants in a fixed-term lease.

The amount of notice generally required is:

- for a **periodic lease**: at least 90 days' notice.
- for a **fixed term lease of 6 months or less**: at least 60 days' notice, and the termination date cannot be before the end of the fixed term
- for a **fixed term lease of more than 6 months**: at least 90 days' notice, and the termination date cannot be before the end of the fixed term.

There are some grounds (such as a breach of the agreement) that have a shorter notice period.

Longer notice periods provide tenants with much-needed additional time to find a new home.

More information is available on the [minimum notice periods for ending a residential tenancy](#) page

Keeping a pet

New laws make it easier for tenants to keep pets in their home started on 19 May 2025. A landlord is only able to refuse a tenant's request to keep a pet for certain reasons.

Landlords need to provide a written response to a pet request within 21 days. If they do not respond, the request is automatically approved.

Landlords may refuse the request if:

- there would be more than 4 animals at the property and the number is unreasonable
- the property is unsuitable for the animal because of the fencing, or lack of open space, or because it would harm the animal's welfare
- it is highly probable the animal will to cause more damage than the bond could repair
- the landlord lives at the property
- keeping the animal would break other laws, local council rules, strata or community scheme by-laws, or a residential community rule
- the tenant did not agree to a reasonable condition for keeping the animal.

There are limits on the kinds of conditions a landlord may ask for. For example, a landlord cannot ask a tenant to increase the bond or the rent as a condition for allowing the pet.

Strata by-laws that ban all pets are not valid and cannot be used as a reason to refuse a pet.

If a tenant disagrees with a decision, they can apply to the NSW Civil and Administrative Tribunal.

Once consent to keep a pet has been given, consent continues at that property for the life of the animal, even if the landlord or agent changes.

Landlords and agents cannot state in an advertisement that no pets are allowed at a rental property.

This change also applies to leases that were in place before the changes started.

The change does not apply to purpose-built student accommodation.

More information is available on the [Pets in rentals](#) page.

Payment of rent

Landlords and agents need to offer tenants rent payment by bank transfer, without any additional fees.

This change started on 19 May 2025. This change also applies to existing leases that were in place before the changes started.

In future, landlords and agents will need to offer rent payment via the Commonwealth Government's Centrepay. Landlords and agents will not need to register for Centrepay unless the tenant has chosen to pay by that method.

More information will be provided on the Fair Trading website before the requirement to offer Centrepay starts.

If both the tenant and landlord agree, the tenant may pay rent using other options.

Tenants cannot be required to use a particular service provider, such as an app, to pay their rent.

More information is available on the [How and when to pay rent](#) page.

Stay up to date with the changes

Further information will be made available on nsw.gov.au including:

- details on the changes to rental laws
- when the laws start
- how the laws will be implemented and enforced.

For the latest updates, sign up to the [NSW Fair Trading Property Matters newsletter](#).

Related information

- [Minns Labor Government to cap rent increases at one per year](#)
- [Residential tenancy complaints](#)
- [NSW Rental Commissioner](#)
- [Renting a place to live](#)
- [Rent Check](#)

Contact NSW Fair Trading

Online: [Complaints and enquiries](#)

Phone: [13 32 20](tel:133220) (Monday to Friday, 8:30am-5pm)

In-person: [find a service centre](#)